

seek. (Plaintiff's Reply, pg. 7:1-3.) Accordingly, the Court deducts these hours from what was initially sought.

Reasonableness of Multiplier

Relevant factors to determine whether an enhancement is appropriate include (1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award. (*Ketchum, supra*, 24 Cal.4th at 1132.)

Plaintiffs requests that a multiplier of 0.2 be applied to the combined lodestar. (Plaintiffs' Moving Papers, pg. 18:20-19:2.) Plaintiffs argue that the factors that should be looked at in this case are the delay in receiving the payment and the quality factor displayed in achieving their results.

In opposition, Defendant argues that there is no basis to award a multiplier as this case did not present any difficult issues, as this was "a single-vehicle, non-complex lemon-law case that never went to trial and was resolved by settlement within the statutory framework." (GM's Opposition, pg. 8:1-21.)

Under these circumstances, a multiplier is appropriate because this case could have been settled much earlier. The delay in payment is a significant factor where the enhancement “is intended to approximate market-level compensation for” cases taken on contingency, “which typically includes a premium for the risk of nonpayment or delay in payment of attorney fees.” (*Ketchum*, 24 Cal.4th at 1138.)

Costs

Plaintiffs seek \$3,302.83 in costs and expenses. This is a case under Civil Code 1794, which permits a court award of both "costs and expenses." The costs appear to be legitimate and reasonable in amount and will be allowed in their entirety.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: JS on 6/1/2026
(Judge's initials) (Date)

(34)

Tentative Ruling

Re: ***Skouti v. Buttonwillow Warehouse Co., Inc., et al.***
Superior Court Case No. 20CECG01971

Hearing Date: June 3, 2026 (Dept. 503)

Motion: (1) by Defendant Buttonwillow Warehouse Co., Inc. to
Bifurcate Trial
(2) by Defendant Britton to Bifurcate Trial

Tentative Ruling:

To deny both motions without prejudice.

Explanation:

Defendants Buttonwillow Warehouse Co., Inc. and James Britton separately move for an order bifurcating trial pursuant to Code of Civil Procedure section 597. Code of Civil Procedure section 597 provides, in pertinent part:

When the answer pleads that the action is barred by the statute of limitations... the court may, either upon its own motion or upon the motion of any party, proceed to the trial of the special defense... before the trial of any other issue in the case....

The decision to grant or deny a motion to bifurcate issues and to have separate trials, lies within the court's sound discretion. (Code Civ. Proc. §§ 598, 1048, subd. (b); *Grappo v. Coventry Financial Corp.* (1991) 235 Cal.App.3d 496, 503-504; see also *Cook v. Superior Court* (1971) 19 Cal.App.3d 832, 834.) The court also has the power to "provide for the orderly conduct of proceedings before it," and to "amend and control its process and orders so as to make them conform to law and justice." (Code Civ. Proc. § 128, subd. (a)(3), (8).)

Defendants have raised the statute of limitations as a defense to plaintiff's claims and request a court trial on the defense together with plaintiff's equitable estoppel defense before the jury trial of plaintiff's claims. Plaintiff opposes on the basis that there are issues of fact common to both equitable estoppel and the cross-complaint for fraud that are to be determined by a jury and a separate trial would not promote judicial economy. The claims of plaintiff's complaint for breach of contract and negligence appear to call for facts distinct from the issues related to the statute of limitations defense. Conversely, Skouti's cross-complaint in the consolidated action alleging fraud against Buttonwillow Warehouse, Co., Inc. presents issues of fact also relevant to plaintiff's equitable estoppel arguments.

It is not apparent at this time that bifurcation of the statute of limitations defense and the plaintiff's claims of equitable estoppel will promote judicial economy. The court

intends to deny the motions without prejudice to the parties raising the issue with motions in limine.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

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